

Moved by Toews

Seconded by Den Hartog

IN THE SENATE
SENATE AMENDMENT TO S.B. NO. 1354

AMENDMENT TO SECTION 1

On page 1 of the printed bill, in line 32, following "not limited to" insert: "architectural design consistent with the primary dwelling,".

AMENDMENT TO SECTION 2

On page 2, in line 25, delete "October 1, 2026" and insert: "February 1, 2027"; in line 30, following "Code," insert: "or designated as a historic property pursuant to section 67-4614, Idaho Code,"; in line 31, following "Allow for" insert: "either"; in line 32, delete "and" and insert: "or"; in line 33, following "lot" insert: "in the rear yard or subject to setbacks required of the primary dwelling"; in line 35, following "unit" insert: "unless the principal dwelling unit does not have off-street parking or the street is not paved and designed or constructed for on-street parking or unless the principal dwelling unit is within one-fourth (1/4) mile of transit, an employment area, or commercial services"; delete lines 42 through 47; and in line 48, delete "(f)" and insert: "(e)".

On page 3, in line 1, delete "(g)" and insert: "(f)"; in line 3, delete "(h)" and insert: "(g)"; in line 5, delete "area" and insert: "district"; also in line 5, delete "height,"; in line 18, delete "five thousand (5,000)" and insert: "ten thousand (10,000)"; and following line 18, insert:

"(7) The provisions of this section shall not supersede state or local laws that protect public health, safety, and welfare, including:

(a) Building codes, fire safety standards, and flood plain regulations;

(b) Laws regarding water, sewer, storm drainage, road access, and utility services necessary to support the required density;

(c) Laws regarding environmental hazards, aquifer recharge zones, steep slopes, and critical habitat protections; and

(d) Laws and regulations regarding setback requirements for rights-of-way and easements.".